

Amendment No. 1 to SB0811

White
Signature of Sponsor

AMEND Senate Bill No. 811

House Bill No. 825*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 6, is amended by adding the following as a new part:

49-6-4601.

This act is known and may be cited as the "Teen Social Media and Internet Safety Act."

49-6-4602.

As used in this part, unless the context otherwise requires:

(1) "Department" means the department of education;

(2) "Internet" means the combination of computer facilities and electromagnetic transmission media, and related equipment and software, comprising the interconnected worldwide network of computer networks that employ the Transmission Control Protocol/Internet Protocol or any successor protocol to transmit information; and

(3) "Social media" means a form of interactive electronic communication through an internet website or application by which a user creates a service-specific identifying user profile to connect with other users of the internet website or application for the purpose of communicating and sharing information, ideas, news, stories, opinions, images, videos, and other content.

49-6-4603.

(a)

(1) By January 1, 2026, the department shall develop guidance for LEAs and public charter schools to instruct students in grades six through twelve (6-12) who are enrolled in the LEA or public charter school on social media and internet safety.

(2) The department shall update the guidance developed pursuant to this subsection (a), if necessary, to reflect changes in social media use, emergent technologies, and new threats to teens using social media.

(3) The guidance developed pursuant to this subsection (a) must conform with the requirements established in § 49-6-4604.

(b) Beginning with the 2026-2027 school year, each LEA and public charter school that enrolls students in any of the grades six through twelve (6-12) shall instruct students in grades six through twelve (6-12) using the guidance developed by the department pursuant to subsection (a).

(c) If a parent or guardian of a student wishes to excuse the parent's or guardian's student from only a portion of the social media and internet safety instruction provided pursuant to subsection (b), then the parent or guardian must submit a request, in writing, to the student's teacher or school principal. If the parent or guardian wishes to excuse the parent's or guardian's student from all of the social media and internet safety instruction provided pursuant to subsection (b), then the parent or guardian must submit a request, in writing, to the student's school principal. A student who is excused from any or all portions of social media and internet safety instruction must not be penalized for grading purposes if the student satisfactorily performs alternative lessons.

49-6-4604.

(a) The social media and internet safety guidance developed in § 49-6-4603(a) must include:

(1) Time management and healthy behaviors on social media;

(2) The negative effects of social media on mental health, including addiction to social media;

(3) The distribution of information on social media;

(4) How social media manipulates behavior;

(5) The permanency of sharing materials online;

(6) How to use social media safely, including:

(A) Maintaining personal security;

(B) Preventing oversharing of personal information;

(C) Identifying cyberbullying, predatory behavior, and signs of potential human trafficking; and

(D) Reporting suspicious behavior encountered on social media to the appropriate authorities; and

(7) Emphasizing the importance of evaluating information generated by artificial intelligence and understanding the potential for misinformation when using artificial intelligence.

(b) The social media and internet safety guidance developed pursuant to § 49-6-4603(a) may include the benefits of social media use; provided, that the guidance must only include the benefits of social media related to:

(1) Career and resume building for future academic or employment opportunities;

(2) Sharing information with family and friends; and

(3) Safely connecting with other users with similar interests.

49-6-4605.

Beginning with the 2025-2026 school year, each LEA and public charter school shall prohibit students from accessing a social media platform using the internet access provided by the LEA or public charter school, except when expressly authorized by a teacher for educational purposes only.

SECTION 2. Tennessee Code Annotated, Section 49-1-221(a)(1), is amended by adding the following as new subdivisions:

(G) Limit the content accessible by students using internet access provided by the LEA to content that is age-appropriate;

(H) Protect the safety and security of students accessing email, chat rooms, and other forms of direct, electronic communication using internet access provided by the LEA; and

(I) Prevent students from using internet access provided by the LEA to access websites, web applications, or software that does not protect students against the disclosure, use, or dissemination of their personal information.

SECTION 3. Section 2 of this act takes effect July 1, 2025, the public welfare requiring it. All other sections of this act take effect upon becoming a law, the public welfare requiring it.